

δύο ἐκάστῳ τῶν εὐθύνων, οἷς ἀναγκαῖόν ἐστι ταῖς ἀ[γορ]αῖς κατὰ τὸν ἐπώνυμον τὸν τῆς φυλῆς ἐκάστης καθῆσθαι· κἄν τις βούληται τινι τῶν τὰς εὐθύνας ἐν τῷ δικαστηρίῳ δεδωκότων, ἐντὸς τριῶν ἡ[μερῶν ἀφ'] ἧς ἔδωκε τὰς εὐθύνας εὐθυναν, ἂν τ' ἰδίαν ἂν τε δ[η]μο[σί]α[ν] ἐμβαλέσθαι, γράψας εἰς πινάκιον λελευκωμένον τοῦ- 20 νομα τό [θ'] αὐτοῦ καὶ τὸ τοῦ φεύγοντος, καὶ τὸ ἀδίκημ' ὃ τι ἂν ἐγκαλῇ, καὶ τίμημα ἐ[πι]γραφάμενος ὃ τι ἂν αὐτῷ δοκῇ, δίδωσιν 5 τῷ εὐθύνῳ. ὁ δὲ λαβὼν τοῦτο καὶ ἀν[ακρίνα]ς, εἰ μὲν καταγνῶ,

16 ταῖς ἀ[γορ]αῖς κ (K-W^{1,2}), 'ante ais fortasse λ; sed ρ quoque nonnumquam habet ligaturam, unde ἀγοραῖς conieci; fortasse autem longius quid desideratur' K⁴: ταῖς εὐθύναις H-L et B¹ invita papyro; ταῖς α. . . . ais B²⁻⁴, K-W³, K⁴, Th. κατὰ (κ, β, K-W³, Th): παρὰ H-L, K-W^{1,2}. 17 ἐκάστης κ, K-W, B²⁻⁴, Th; ἕκαστον H-L; ἐκάστο[ι]ς B¹, post τ prior tantum pars litterae η vel ο dispici potest. 18 τῷ λογισ-τηρίῳ Photiades. ΕΝΤΟΣ Γ (sc. ἐντὸς τριῶν) κ, K-W, β, Th; 'potest etiam λ legi' (non Γ), K⁴, quod praefert Lipsius. 19 ἂν τ' ἰδίαν ἂν τε δημοσίαν optime Gertz (edd., ἐάν τ'—ἐάν τ'—H-L). 20 δημοσίαν Gertz, K-W. 21 τὸ αὐτοῦ B¹, Richards, H-L, K³; τό τε αὐτοῦ K-W; τό θ' αὐτοῦ B²⁻⁴, K⁴, Th. 22 ἐπιγραφάμενος Wyse, Lipsius (K³); ἐπιγραφάμενος H-L, β, K⁴, Th; ὑπογραφάμενος K-W, sed υ valde incertum putat K. 23 ἀ[νακρίνας] Wayte, Lipsius, B⁴, Th: ἀ[ναγνούς] B¹⁻³, K-W, H-L, K^{3,4}, quamquam vel propter proximum καταγνῶ suspectum; dubitat Kaibel 214; ἀκούσας] K¹. μὲν secl. K-W, B.

εὐθύνων καὶ (ἡ MSS) τῶν παρέδρων, and in CIA 809 δ, ὀφειλέτω ὁ μὴ ποιήσας μυριάς δραχμὰς ἱερὰς τῇ Ἀθηνᾷ καὶ ὁ εὐθυνος καὶ οἱ πάρεδροι ἐπ' ἀναγκὰς αὐτῶν καταγινωσκόντων ἢ αὐτοὶ ὀφειλόντων. In CIA ii 571 (B.C. 368), the εὐθυνος (of a deme) is mentioned together with his πάρεδροι; and *ib.* 578, the εὐθυνος (of another deme) with the λογιστῆς and the συνήγοροι. Cf. Plat. *Leg.* 761 E, ἀνυπεύθυνον οὐδένα δικάζειν καὶ ἄρχειν.

The text shews that, even after the audit had been passed, officials were liable to be prosecuted by private persons in respect to the manner in which they had discharged their duties. Cf. Lipsius in *Leipzig Verhandl.* (1891) 66, 67; also Wilamowitz, ii 231 ff., on λόγος and εὐθυνα.

ἀναγκαῖόν ἐστι ἀνάγκη is avoided here, and in 53 § 5, *propter hiatus* (Kaibel, 10, 15).

ταῖς ἀγοραῖς] hitherto understood to mean 'at the regular meetings held by the several tribes for the transaction of tribal business.' CIA ii 555, τῇ κυρίᾳ ἀγορᾷ κρύβδην ψηφισαμένων τῶν φυλετῶν ἐν τῇ ἀκροπόλει, 554 δ, ἐν τῇ ἀγορᾷ (of the tribe Pandionis), 564, ὅταν ἀγορὰν ποιῶν (Gilbert, i 224 n. 4). Wilamowitz, however (ii 235 n. 15), prefers making ἀγοραῖς 'the ordinary market-hours.' If action had to be taken 'within three days,' this could not admit of

waiting for the next 'meeting for the transaction of tribal business.'

κατὰ τὸν ἐπώνυμον τὸν τῆς φυλῆς ἐκάστης] 'opposite the statue of the eponymous hero of each of the several tribes.' The statues of the ten Attic heroes from whom the ten tribes derived their names (21 § 6) were a little beyond the θόλος and the βουλευτήριον (Paus. i 5, 1), in a conspicuous position on the northern slope of the Areopagus. Cf. Judeich, *Topogr. von Athen*, p. 310.

ἂν τ'... ἂν τε] Kühner, § 541. ἐμβαλέσθαι] of formally 'putting in' a document, Dem. p. 1014, 25, ἐμβέβλη- μένος οὐδεμῶν μαρτυρίαν, 1104, 6; 1203, 26, ἐμβαλομένου γὰρ ἐμοῦ τὸν ὅρκον εἰς τὸν ἐχίνον.

τίμημα ἐπιγραφάμενος] Arist. *Plut.* 480, τί δῆτά σοι τίμημ' ἐπεγράψω τῇ δίκῃ; Lex ap. Aeschin. i § 16, τίμημα ἐπιγραφάμενος. Dem. 29 § 8, τῶν ἐπιγεγραμμένων ('the damages claimed') ἐτίμησαν. Pollux (viii 47, of φάσις), ἐδίδοσαν ἐν γραμματέω γράψαντες τὴν φάσιν τά θ' ἐαυτῶν καὶ τὸ τοῦ κρινόμενου ὄνομα προσγράφαντες καὶ τίμημα ἐπιγραφάμενοι.

§ 5. ἀνακρίνας—καταγνῶ] The examination of the accounts by the λογισταὶ and συνήγοροι is described as an ἀνάκρισις. Ar. ap. Lex. *Rhet. Cant.* s.v. λογισταί, (συνήγοροι) συνανακρίνουσι τούτους (sc. τοὺς λογισταῖς). For the general use of ἀνα-